

HOUSE No. 5434

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas W. Moakley and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for the appointment of associate members of the Planning Board of the town of Tisbury to fill vacancies on the board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>5/12/2026</i>

HOUSE No. 5434

By Representative Moakley of Falmouth and Senator Cyr, a joint petition (accompanied by bill, House, No. 5434) of Thomas W. Moakley (by vote of the town) for legislation to provide for the appointment of associate members of the planning board of the town of Tisbury to fill vacancies on the board. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the appointment of associate members of the Planning Board of the town of Tisbury to fill vacancies on the board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the fourth sentence of the eleventh paragraph of section 9
2 of chapter 40A of the General Laws or any other general or special law to the contrary, the select
3 board and planning board of the town of Tisbury, by majority vote of the combined members of
4 said boards present and voting, may appoint up to two (2) associate members of the planning
5 board, for terms of five years. In the case of the absence, inability to act or conflict of interest on
6 the part of any members of the planning board of the town of Tisbury or in the event of one or
7 more vacancies on the planning board, the chair of the planning board may designate one or both
8 associate members of the planning board to sit on the planning board for the purposes of acting
9 on any matter under its jurisdiction including, but not limited to, a matter coming under its
10 jurisdiction pursuant to chapter 41 or chapter 40A of the General Laws.

11 SECTION 2. This act shall take effect upon its passage.